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Tentative Ruling

Re: ***Insurance Company of the West v. Marquez et al.***
Superior Court Case No. 26CECG00882

Hearing Date: August 11, 2026 (Dept. 502)

Motion: By Richard Venegas to File Complaint-In-Intervention

Tentative Ruling:

To grant. (Code Civ. Proc., § 387, subd. (d)(1).)

Explanation:

Plaintiff-in-Intervention Richard Venegas ("Venegas") moves for leave to file complaint-in-intervention under Code of Civil Procedure section 387, subdivision (d)(1), and Labor Code section 3853.

Code of Civil Procedure section 387, subdivision (d)(1), states in pertinent part, "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if...[a] provision of law confers an unconditional right to intervene." Labor Code section 3850 states in pertinent part, "As used in this chapter... 'Employer' includes insurer". Labor Code section 3853 states in pertinent part, "If the action is brought by either the employer or employee, the other may, at any time before trial on the facts, join as party plaintiff or shall consolidate his action, if brought independently."

The current case arises from an incident involving Venegas upon which Venegas filed a worker's compensation claim. (Kreit Decl., ¶¶ 2-3.) Insurance Company of the West ("West") paid out benefits to Venegas. (*Id.*, ¶ 3.) West is Venegas's Employer's Insurance. Therefore, West meets the definition of Employer for purposes of Labor Code section 3853. Labor Code section 3853 provides a statutory basis for Venegas to intervene. Accordingly, Venegas's motion for leave to file complaint-in-intervention is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: img on 8-10-26
(Judge's initials) (Date)

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Tentative Ruling

Re: **Ruben Ramos v. ASFC, LLC**
Superior Court Case No. 25CECG02842

Hearing Date: August 11, 2026 (Dept. 502)

Motion: by Defendant to Compel Arbitration

Tentative Ruling:

To grant defendant ASFC, LLC's motion to compel arbitration of plaintiff Ruben Ramos's claims, and stay plaintiff's court action pending the arbitration of his claims.

Explanation:

Legal Standard

A trial court is required to grant a motion to compel arbitration "if it determines that an agreement to arbitrate the controversy exists." (Code Civ. Proc., § 1281.2) However, there is "no public policy in favor of forcing arbitration of issues the parties have not agreed to arbitrate." (*Garlach v. Sports Club Co.* (2012) 209 Cal.App.4th 1497, 1505) Thus, when a motion to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine: (1) whether the agreement exists, and (2) if any defense to its enforcement is raised, whether it is enforceable. The moving party bears the burden of proving the existence of an arbitration agreement by a preponderance of the evidence. The party claiming a defense bears the same burden as to the defense. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413-414.)

A Valid Arbitration Agreement Exists

The moving party has the burden of proving the existence of a valid arbitration agreement. (*Pinnacle Museum Tower Assn v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236.) Unless there is a dispute over authenticity, the mere recitation of the terms is sufficient for a party to move to compel arbitration. (*Sprunk v. Prisma LLC* (2017) 14 Cal.App.5th 785, 793.)

Here, Defendant provided a copy of the arbitration agreement at issue. (Blair Decl., ¶ 3, Exh. A.) The agreement is authenticated by Yvonne Castellanos, the Admissions Coordinator for Defendant ASFC, LLC. (Castellanos Decl., ¶¶ 3, 8.) The agreement was signed by Ms. Castellanos and Plaintiff on June 5 and 6, 2023, respectively. (Blair Decl., ¶ 3, Exh. A.) Plaintiff in his opposition¹ does not dispute that he signed the agreement, or otherwise challenge its authenticity. As such, Defendant has met its burden to prove the existence of a valid arbitration agreement by a

¹ Any defect due to untimeliness in the service of the opposition is waived, as Defendant replied on the merits of the opposition. (*Alliance Bank v. Murray* (1984) 161 Cal.App.3d 1, 7.)

preponderance of the evidence, and the burden shifts to Plaintiff to demonstrate the agreement is unenforceable.

The Arbitration Agreement is Enforceable

Plaintiff argues that the arbitration agreement is statutorily barred pursuant to Civil Code section 1953, and that it is unenforceable as unconscionable.

Civil Code section 1953 and *Harris v. University Village Thousand Oaks, CCRC, LLC*

Plaintiff construes the subject arbitration agreement as part of his agreement for “long term living care,” analogous to the continuing care agreements in *Harris v. University Village Thousand Oaks, CCRC, LLC* (2020) 49 Cal.App.5th 847 (*Harris*) which were held to be protected by the prohibitory provisions of Civil Code section 1953. However, the aggrieved residents in *Harris* “lived in independent living units and not the adjacent assisted living units[]” (*Id.* at p. 854) and their causes of action addressed conditions attendant to tenancy rather than the providing of services. (*Id.* at p. 852 [the residents alleged “false representations regarding facility security, the amount of future increases in monthly fees, and whether monthly fees included the cost to charge electric vehicles.”].) In other words, the Second District looked to the residents' right to live in their units (i.e. the unsatisfactory lodging and tenancy features which dominated the dispute) to find protection under section 1953. (*Id.* at p. 856.)

Unlike the residents' causes of action in *Harris*, each cause of action here is framed around aspects of Defendant's alleged negligence rather than underperforming features of tenancy. Plaintiff's allegations do not include violations of his rights as a tenant. Instead, they pertain to personal injuries he allegedly sustained due to his fall at the skilled nursing facility. Furthermore, Plaintiff provides no actual evidence establishing that Plaintiff was a resident or tenant of the facility in order to render the *Harris* holding applicable. Plaintiff makes vague statements such as “the primary purpose of Plaintiff staying at the Defendant's facility was long term living care” but offers no evidentiary support. Plaintiff only provides a declaration by his counsel, which is no more than hearsay. The holding in *Harris* is inapplicable to the present matter.

Unconscionability

Plaintiff argues that the arbitration agreement is unconscionable. If the court finds as a matter of law that a contract or any portion of it was unconscionable at the time it was made, the court may refuse to enforce it, or may enforce the contract without the unconscionable provisions, or limit their application to avoid any unconscionable result. (Civ. Code, § 1670.5, subd. (a).) There are two prongs considered in this analysis: procedural unconscionability and substantive unconscionability. Both must be present for a court to exercise its discretion to refuse to enforce an arbitration agreement under the doctrine of unconscionability. (*Armendariz v. Foundation Health Psychcare Services, Inc.* (2000) 24 Cal.4th 83, 113.) They need not be present in equal amounts; essentially a sliding scale is used, and where there is substantive unconscionability, less procedural unconscionable need be shown. (*Id.* at pp. 113-114.)

Plaintiff makes a scant argument that “[i]t is procedurally unconscionable to force a patient who was transferred to a facility to sign an Arbitration Agreement as a condition of residency when care had already been rendered beforehand.” (Opp., 4:16-17.) Plaintiff offers no authority to support this position, and again, Plaintiff fails to support this position with any evidence. Further, it does not appear that Plaintiff was “forced” to sign the agreement. The agreement itself makes it clear that “Residents shall not be required to sign this arbitration agreement as a condition of admission to this facility. [...] [T]his document is not part of the admission agreement.” (Blair Decl., Exh. A.) The agreement additionally provides that it may be “rescinded by written notice within thirty (30) days of signature.” (*Ibid.*) These factors do not lend themselves to a finding of procedural unconscionability.

Plaintiff's arguments for substantive unconscionability are that Plaintiff was offered no opportunity for legal representation to review the contract, Plaintiff was not afforded any time to review the agreement prior to the care received or his transfer to the facility, and the agreement seeks to contract away the rights mandated by public policy (see *Harris* discussion above). Again, Plaintiff provides no evidence in support of any of these claims, as the only declaration of Plaintiff's counsel is mere hearsay. Aside from no proof that Plaintiff was not afforded the opportunity to review the agreement at the time it was signed, the 30-day "grace period" allowing for rescission of the agreement belies the position that Plaintiff had no opportunity to either review the agreement or have legal counsel review it. Thus, the Plaintiff's unconscionability arguments fail.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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